



COLLABORATION AGREEMENT

BETWEEN

KWARA STATE GOVERNMENT

AND

IHS (NIGERIA) LIMITED

THIS COLLABORATION AGREEMENT IS DATED THIS [..... DAY OF 202] ("EFFECTIVE DATE")

BETWEEN

KWARA STATE GOVERNMENT of Kwara State Government House, Ahmadu Bello Way, G.R.A Ilorin, Kwara State (hereinafter referred to as "**KWSG**", which expression shall where the context so admits, include its successors-in-title and assigns) of the first part;

AND

IHS (NIGERIA) LIMITED, a limited liability company registered under the laws of Nigeria and having its registered office at Plot 934 Idejo Street, Victoria Island, Lagos State (hereinafter referred to as "**IHS**", which expression shall where the context so admits include its successors-in-title, assigns and Affiliates) of the second part.

IHS and **KWSG** shall individually be referred to as a "**Party**" and collectively as the "**Parties**".

WHEREAS:

- a. The Parties have entered into a Memorandum of Understanding dated 17 November 2023 to memorialize their intention to collaborate with respect to the construction of a technology innovation facility located at [...] ("the **Hub**") and the curation and execution of programs to stimulate and deepen technology and services innovation, entrepreneurship, investment and job creation ("the **Programs**") in Kwara State and across Nigeria ("the **Project**").
- b. The Parties now enter into this Agreement to set forth the specific terms and conditions on which they will collaborate for the execution of the Project and to document their respective obligations, liabilities, powers, and duties in respect of the subject hereof.

NOW THEREFORE, in consideration of the mutual agreements and covenants contained herein and intending to be legally bound thereby, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 DEFINITIONS

In this Agreement, the words and expressions defined below shall have the meanings ascribed to them, except where the context requires otherwise:

"Affiliate" of a Party, means with respect to such Party, an entity that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Party; provided, however, that in the case of IHS, the term shall mean INT Towers Limited, IHS Towers NG Limited, Global Independent Connect Limited and any other Affiliate of IHS duly communicated in writing to KSWG by IHS. For the purpose of this definition, "Control" (including the terms "controlled," "controlled by" and "under common control with") means the possession, directly or indirectly or as trustee or executor, of the power to direct or cause the direction of the management policies of a Party, whether through the ownership of stock, as trustee or executor, by contract, credit arrangement or otherwise.

"Agreement" means this Collaboration Agreement, its annexures, schedules, and appendices, and includes any amendments and/or supplements thereto made in accordance with the provisions hereof.

"Anti-Corruption Laws" shall have the meaning ascribed thereto in **Clause 8.3.1** of this Agreement.

"Applicable Law" means any statute, law, regulation, ordinance, rule, judgment, rule of common law, clearance, order, decree, bye-law, directive, guideline, policy, requirement or other governmental restrictions or any similar form of decision or determination by, or any interpretation or administrative order having the force of law of any of the foregoing by any government authority having jurisdiction over the matter in question in Nigeria.

"Business Day" means any day on which commercial banks are open for business in the Federal Republic of Nigeria;

"Confidential Information" includes without limitation, any technical, commercial, scientific information, know-how, trade secrets, business ideas, processes, machinery, designs, drawings, technical specifications, and data in whatever form, disclosed that concern or relate to a Party, its business, operations, styles of work or any other information that may be acquired by the other Party in relation to this Agreement and including the existence and terms of this Agreement.

"Effective Date" shall have the meaning ascribed thereto in the preamble to this Agreement.

"Force Majeure Event" means any event which is beyond a Party's reasonable control including by way of indication (but not as an exhaustive list) the events specified below, but in all cases insofar as the relevant events reasonably prevent the impacted Party from performing all or part of its obligations under this Agreement:

- a. any revolution, riot, invasion or war (whether declared or otherwise), act of terrorism, uprising, sabotage or action by a public enemy;
- b. any act of God (including storm, flood, hurricane, earthquake or other natural disaster); and
- c. any acts by military, police or civil authorities (whether national, local or foreign), *provided that* in all cases, the Party whose performance is affected has taken all steps as may reasonably be expected to have been taken in order to prevent such act or event from occurring or impacting the performance of its obligations.

"Governing Board" shall have the meaning given in Clause 3.10 of this Agreement.

"Hub" shall have the meaning ascribed thereto in **paragraph a** of the recitals to this Agreement.

"Hub Construction Cost" shall mean all costs associated with procuring the services and materials required for the construction, finishing, and furnishing of the Hub.

"Hub Program" shall have the meaning given in Clause 3.23 (b) of this Agreement.

"IHS Contribution" shall mean in respect of Clause 3.9(a) the amount to be contributed by IHS in Clause 3.9(b); and in respect of Clause 3.18(a), the amount to be contributed by IHS in Clause 3.18(b).

"IHS Intellectual Property" shall have the meaning ascribed thereto in **Clause 18.7** of this Agreement.

"IHS Program" shall have the meaning given in Clause 3.23 (a) of this Agreement.

"IHS Team" shall have the meaning given in Clause 3.24 of this Agreement.

"Management Budget" shall have the meaning given in Clause 3.16 of this Agreement.

"Management Team" shall have the meaning given in Clause 3.15(e) of this Agreement.

"Pre-Existing Intellectual Property" shall have the meaning ascribed thereto in **Clause 18.7** of this Agreement.

"Project" shall have the meaning ascribed thereto in **paragraph a** of the recitals to this Agreement.

"Project Manager" shall have the meaning given in Clause 3.7 of this Agreement.

"Tax" means all applicable taxes, duties and levies payable to the relevant Governmental Authority in respect of this Agreement.

"Term" shall have the meaning given in Clause 2 of this Agreement.

"Trade Authority" shall have the meaning ascribed thereto in **Clause 7.2.3** of this Agreement.

1.2 INTERPRETATION

- 1.2.1. Words importing the singular shall include the plural and vice versa, and words denoting natural persons shall include partnerships, firms, companies, corporations, unincorporated bodies, joint ventures, trusts, associations, organizations or other entities (in each case, whether or not having separate legal personality);
- 1.2.2. The headings are for convenience of reference only and shall not be used in, and shall not affect the meaning, construction, interpretation or scope of this Agreement or the provisions it relates to;
- 1.2.3. The words "include" and "including" are to be construed without limitations;
- 1.2.4. Any reference to; day, month or year shall mean a reference to a calendar day, 30 days or 365 days respectively, unless otherwise specified;
- 1.2.5. The schedules and appendices to this Agreement form an integral part of this Agreement as though they were expressly set out in the body of this Agreement. In case of any discrepancy between the schedules and appendices and the body of the Agreement, the latter shall prevail;
- 1.2.6. Any reference at any time to any agreement, deed, instrument, license or document of any description shall be construed as reference to that agreement,

- deed, instrument, license or other document as amended, varied, supplemented, modified or suspended at the time of such reference;
- 1.2.7. References to recitals, clauses, sub-clauses or schedules in this Agreement shall, except where the context otherwise requires, be deemed to be references to recitals, clauses, sub-clauses and schedule of or to this Agreement;
 - 1.2.8. The expression "this Clause" shall, unless followed by reference to a specific provision, be deemed to refer to the whole clause and not merely the subclause, paragraph or other provision, within which the expression falls;
 - 1.2.9. The expression "in writing" includes any communication made by letter or email to the recipient's email address;
 - 1.2.10. Unless otherwise defined, words or terms used in this Agreement shall have their literal English meanings. Where any inconsistency between or among different language versions of the counterparts exists, the English language version shall prevail;
 - 1.2.11. Any agreement, consent, approval, authorization, notice, communication, information or report required under or pursuant to this Agreement from or by any Party shall be valid and effectual only if it is in writing under the hands of duly authorized representatives of such Party on its behalf and not otherwise;
 - 1.2.12. Any reference to any period commencing "from" a specified day or date and "till" or "until" a specified day or date shall include both such days and dates; and
 - 1.2.13. Any reference to any statute, statutory provision or statutory instrument shall include any re-enactment or amendment thereof for the time being in force.
 - 1.2.14. The terms of this Agreement having been negotiated, no provision herein shall be construed against or interpreted to the disadvantage of any Party by reason of such Party having or being deemed to have structured, drafted or introduced such provision. Accordingly, the rule of interpreting a document or provision strictly against the maker shall not apply in this regard.
 - 1.2.15. If any provision in a definition is a substantive provision conferring rights or imposing obligations on any Party, then, notwithstanding that it is only in a definition, effect shall be given to that provision as if it were a substantive provision in the body of this Agreement.
 - 1.2.16. Where any term is defined within a particular clause, other than the definition or interpretation clause, that term shall bear the meaning ascribed to it in that clause wherever it is used in this Agreement.
 - 1.2.17. Subject to any express provision to the contrary, this Agreement shall be binding on and enforceable by or against the successors-in-title, estate, heirs, executors, administrators, trustees, permitted assigns or liquidators of the Parties as applicable, as fully and effectually as if they had signed this Agreement in the first instance and reference to any Party shall be deemed to include such Party's successors-in-title, estate, heirs, executors, administrators, trustees, permitted assigns or liquidators, as applicable.

2. COMMENCEMENT AND DURATION

This Agreement shall become effective on the Effective Date and shall be valid and remain in full force, operation, and effect for a period of five (5) years ("the **Term**"), subject to the termination provisions of the Agreement. This Agreement may be extended for a further period on such terms and conditions as the Parties may agree and any such extension shall form part of the Term.

3. SCOPE OF COLLABORATION

Subject to the terms and conditions of this Agreement, the Parties shall collaborate in the manner, and shall perform their respective obligations, as set out below.

- 3.1. Each Party shall use its best efforts, skill, and dedication to fulfil its obligations under this Agreement and shall always be bound by fairness, sound judgment and good conscience in the execution of the Project and while dealing with the other Party.
- 3.2. Each Party shall cooperate with the other Party's reasonable requests for assistance and take such further steps and execute such further documents necessary to give effect to this Agreement.
- 3.3. The Parties shall make diligent efforts to identify the cause of any conflict during the Term and take such necessary steps to resolve such conflict.
- 3.4. The Parties shall at all times comply with all applicable Laws and regulations relating to and affecting each of them, and the Project, throughout the Term.

Hub Construction

- 3.5. The Parties agree that the Hub shall be constructed in accordance with the specifications and timelines set forth in **Schedule 1** of this Agreement subject to such changes as may be agreed in writing by the Parties.
- 3.6. The Hub Construction Cost shall be determined by KWSG in consultation with IHS.
- 3.7. IHS shall appoint a construction project co-ordinator ("**Project Manager**") to facilitate the timely completion of the Hub construction.
- 3.8. The Parties shall meet from time to time as required to:
 - a. review and determine the various elements of the Hub Construction Cost including but not limited to matters such as scope of works required, bills of quantities, vendor proposals and negotiations; and
 - b. determine and review the work plan and construction milestones for the completion of the Hub.
- 3.9. The Parties shall each contribute to fund the construction of the Hub in the manner set forth below:
 - a. KWSG shall fund the entire Hub Construction Cost less the IHS Contribution; and
 - b. IHS shall contribute up to a maximum of **₦2,000,000,000 (Two Billion Naira)** only toward the Hub Construction Cost which shall be paid as required directly to the vendors for the Hub Construction on the recommendation of KWSG subject to the approval of the Project Manager.

Hub Maintenance and Management

- 3.10. The Parties agree that a governing board shall be created for the operation, maintenance and management of the Hub ("**Governing Board**").
- 3.11. The Governing Board shall consist of seven (7) persons, four (4) of which shall be nominated by KWSG and three (3) of which shall be nominated by IHS. Each Party shall notify the other of their respective nominations to the Governing Board in writing no later than April 15th, 2024 providing the names and contact details of such nominees. The Parties may in their sole discretion replace their nominees on the Governing Board by notice to the other Party.
- 3.12. The Parties shall ensure that their respective nominees on the Governing Board shall facilitate the performance of their respective obligations under this Agreement.
- 3.13. The Governing Board shall hold its inaugural meeting no later than 30th April, 2024. KWSG shall give the members of the Governing Board no less than five (5) Business Days' notice of the inaugural meeting. Where KWSG does not issue a notice of the inaugural meeting by 30th April, 2024, IHS may give the notice and call the meeting giving no less than 5

- Business Days' notice. Shorter notice of the inaugural meeting of the Governing Board may be given by the written consent of all the members of the Governing Board.
- 3.14. The inaugural meeting of the Governing Board shall require a quorum of five (5) persons present failing which the meeting shall be adjourned to the next following Business Day. Those present at the adjourned meeting shall be deemed a quorum.
 - 3.15. At the inaugural meeting of the Governing Board, the following matters shall be discussed and agreed upon by simple majority in addition to any other relevant matters:
 - a. The frequency of meetings of the Governing Board;
 - b. The manner of calling meetings of the Governing Board;
 - c. Quorum required for meetings of the Governing Board;
 - d. Committees of the Governing Board;
 - e. Appointment of the members of the Hub management team who shall (i) implement the decisions of and report to the Governing Board, (ii) be responsible for the day to day running of the Hub, and (iii) be responsible for the co-ordination of all key stakeholders for the Project within and outside Kwara State ("**Management Team**").
 - 3.16. The Governing Board shall determine the operational, maintenance and management needs of the Hub as well as the budget required to meet such needs on an annual basis ("the **Management Budget**") save for the initial Management Budget which shall be determined in writing by the Parties no later than 31 May 2024;
 - 3.17. All Management Budgets shall be subject to IHS' approval and disbursement of the IHS Contribution in Clause 3.18 (b) shall be made in agreed quarterly cycles.
 - 3.18. The Parties shall each contribute to fund the Management Budget on an annual basis throughout the Term in the manner set forth below:
 - a. KWSG shall fund the entire Management Budget less the IHS Contribution; and
 - b. IHS shall contribute up to a maximum of ~~N~~**500,000,000 (Five Hundred Million Naira)** only, per annum.
 - 3.19. The Parties agree that IHS shall have the right throughout the Term to conduct audits of the Management Budget and/or the Management Team and may request relevant information on a periodic or on-going basis therefor.

Ownership and Use of the Hub

- 3.20. IHS acknowledges that ownership of the Hub vests with KWSG.
- 3.21. The Parties agree that throughout the Term of this Agreement, the IHS Team shall be given exclusive use of dedicated workspace within the Hub comprising office space for administrative activities on the ground floor of the Hub and open space and workstations on the top floor of the Hub. The IHS Team and IHS Program participants shall also have access to all common areas.
- 3.22. All activities to be undertaken at the Hub shall be in alignment with the general principles of this Agreement and subject to advance notice to and collaboration with the Management Team.

The Programs

- 3.23. The following two streams of programs shall be run at the Hub:
 - a. Programs which shall be organized and managed by IHS ("**IHS Programs**") ; and
 - b. Programs which shall be organized and managed by the Management Team ("**Hub Programs**").
- 3.24. IHS shall at its cost and in its sole discretion decide on the curriculum of the IHS Programs and may appoint such number of persons as it deems necessary to manage and facilitate the IHS Programs ("**IHS Team**"). The schedule for the IHS Programs shall be shared with the Management Team annually in advance and any modifications and adjustments thereto shared quarterly in advance to optimize the use of available space within the Hub.

- 3.25. KWSG shall at its cost and in its sole discretion decide on the curriculum of the Hub Programs.
- 3.26. The Management Team shall be responsible for scheduling and managing the use of the space within the Hub for the Programs.

General Governance

- 3.27. The Parties agree that there shall be quarterly meetings held between the Parties, the Management Team and selected representatives of the IHS Team during which reports shall be given of Hub activities and the Parties may assess all Hub activities and Programs and evaluate the current status of the Project.

Branding and Marketing

- 3.28. The Parties shall collaborate on all branding and marketing activities for the Project.
- 3.29. IHS shall have the right on an exclusive basis to provide all physical branding of the Hub. Where such branding is in conjunction with a third party, KWSG approval shall be required.
- 3.30. Any physical branding of the Hub by KWSG shall be subject to the prior receipt of a written notice of no objection from IHS.
- 3.31. The Parties shall agree on all communications pertaining to this Agreement before public release.

4. BENEFICIARIES

Nothing contained in this Agreement shall give or allow any claim or right of action whatsoever by any third person other than as stated in this Agreement. It is the express intention of IHS and KWSG that any such person or entity other than as referred to in this Agreement receiving the Services or benefits under this Agreement shall be deemed an incidental beneficiary only and as such, no such person shall have any right to enforce any term of this Agreement.

5. REPRESENTATIONS AND WARRANTIES

Each Party hereby represents and warrants that:

- 5.1 Each Party validly exists under the laws of the Federal Republic of Nigeria.
- 5.2 It has full capacity and authority to enter into and to execute the provisions of the Agreement.
- 5.3 This Agreement is executed by the duly authorised representatives of that Party.
- 5.4 Once duly executed, this Agreement will constitute a legal, valid, and binding document, enforceable upon its terms.
- 5.5 This Agreement is not in violation of or conflict with the terms of any other agreements entered into by it.
- 5.6 There are no material actions, suits or proceedings or regulatory investigations pending, or to that Party's knowledge, threatened against that Party or any of its Affiliates that might adversely affect the ability of the Party to meet and carry out its obligations under this Agreement.
- 5.7 It has performed and will continue to perform all reasonable and necessary due diligence for the purpose of carrying out the Services in this Agreement.

6. RELATIONSHIP BETWEEN THE PARTIES

- 6.1 Nothing in this Agreement shall create any relationship beyond that contemplated by the Parties and herein expressly stipulated and agreed. The Parties hereby confirm that the relationship between them pursuant to this Agreement shall not be construed as creating any partnership, principal/agency relationship or joint venture in respect of existing business.

- 6.2 IHS shall not be precluded by KWSG or its agents by virtue of its participation in and under this Agreement or precluded in anyway whatsoever from carrying on its normal administrative, commercial and technical / operational activities in connection with the general provision of services to its customers.

7. TRADE LAWS, ANTI-TERRORISM AND ANTI-MONEY LAUNDERING

- 7.1. Each Party hereby represents, warrants, and undertakes to the other Party that neither the Party nor any of its directors, officers, employees, Affiliates or any third party retained by and/or representing it, (a) is the government of, resident in, located in, organized under the laws of, or subject to the jurisdiction of, any country or territory that is, or whose government is, the target of comprehensive economic or trade sanctions or restrictive measures under Applicable Laws, presently including the Crimea Donetsk and Luhansk regions of Ukraine, Cuba, Iran, North Korea, Syria, and the Government of Venezuela; (b) is designated on any sanctions list promulgated, administered, or enforced under Applicable Laws, including but not limited to, the U.S. Treasury Department's Specially Designated Nationals and Blocked Persons List; (c) is owned or controlled directly or indirectly by any party described any clauses (a) or (b); (d) is subject to a Denial Order by the U.S. Department of Commerce, Bureau of Industry and Security; or (e) is subject to any other restrictions that would preclude the Party from dealing with the other Party.
- 7.2. Each Party hereby confirms that:
- 7.2.1. It shall not (neither shall any of its directors, employees or agents) directly or indirectly engage in, promote or assist and/or facilitate any form of terrorist group or person who engages in or promotes or supports, any form of terrorist activity whatsoever.
- 7.2.2. It shall ensure that it complies with anti-money laundering and anti-terrorism laws, laws and regulations on sanctions or embargoes, restricted party lists trade controls on the import, export, re-export, transfer or otherwise trade of goods, services, software, or technology of Nigeria, including those of any jurisdiction in which IHS operates, or where its Affiliate(s) operates, including, but not limited to, the European Union, the United Kingdom and the United States of America and other Applicable Laws. Each Party further confirms that it has in place and undertakes to maintain sufficient internal structures and processes to ensure such compliance and to track, prevent and detect the violations of these laws.
- 7.2.3. It shall, if any of the obligation hereunder requires a license, permit, or other authorization from any sanctions or export controls governmental or regulatory authority, including but not limited to, the Federal Republic of Nigeria, U.S. Treasury Department and the U.S. Commerce Department (collectively, "**Trade Authority**"), prior to the direct or indirect obligation, (a) apply for and secure all necessary licenses, permits, or other authorizations from the relevant Authority to allow the export, reexport, transfer, disclosure, or other release or provision of the Services to relevant for the purposes of the Services; (b) provide written notice to the Party of any end-user, end-use, or other applicable conditions issued by a Trade Authority as part of any necessary license, permit or other authorization received from a Trade Authority; and (c) provide written notice to the other Party to identify all items subject to a license, permit, or other authorization.

- 7.2.4. It shall ensure that none of the agents of KSWG or the directors or officers of IHS has been the subject of an investigation, settlement or conviction for applicable anti-money laundering and anti-terrorism, sanctions and export controls laws and regulations.
- 7.2.5. It shall immediately upon discovery or reasonable suspicion, send the Party a written notification of an incident or suspicion of the involvement of the other Party, the agents of KSWG or the directors, officers, employees of IHS, Affiliates, or any third party retained by it/representing it in a violation of applicable anti-money laundering and anti-terrorism, sanctions and export control laws and regulations in connection with the Services that the Party provides to the other Party.
- 7.2.6. Prior to the direct or indirect provision of any hardware (including tooling), software, or technology (collectively, **"Items"**) by either party to the other party, each party shall provide a written notice of any Items that are **"Restrictively Controlled"** under any applicable export control laws, including U.S. export control laws administered under the U.S. Export Administration Regulations (**"EAR"**) or EU export control laws administered under the EU Dual-Use Regulation 428/2009. Items are "Restrictively Controlled" if they are (a) subject to the EAR, excluding Items that are classified as EAR99, and further excluding Items classified under an export control classification number controlled only for anti-terrorism reasons; or (b) Items for which the direct or indirect provision to either Party or either Party's benefit requires a license, permit, or other authorization under any applicable export control laws.

8. ANTI-BRIBERY AND ANTI-CORRUPTION

- 8.1. Each Party hereby represents, warrants and undertakes that, as at the date of this Agreement, neither it nor any of its directors, officers, employees, Affiliates or any third party retained by and/or representing it, has offered, promised, given, authorized, solicited or accepted any undue pecuniary or other advantage of any kind (or implied that they will or might do any such thing at any time in the future) in any way connected with this Agreement, and that it has taken reasonable measures to prevent subcontractors, agents or any other third parties subject to its control or determining influence from doing so.
- 8.2. Each Party shall comply with all applicable anti-bribery and anti-corruption laws in Nigeria any relevant jurisdiction and (including those applicable in its jurisdictions of operation, the territory of the Services, the Foreign Corrupt Practices Act of the United States of America and the Bribery Act 2010 of the United Kingdom and all applicable anti-bribery and anti-corruption regulations and codes of practice.
- 8.3. Each Party further represents, warrants, and undertakes to the other Party as follows:
 - 8.3.1. That itself, its Agents and Affiliates, and anyone retained by and/or representing it, in each case has and will strictly adhere to and comply with all Applicable Laws, rules and regulations against bribery and corruption in the Federal Republic of Nigeria (including but not limited to local, regional and international anti-bribery and anti-corruption laws, such as the U.S. Foreign Corrupt Practices Act, the U.K. Bribery Act and any applicable legislation in any country where the Party or its Affiliates operates) (collectively, **"Anti-Corruption Laws"**), and that neither it nor any of its directors, officers, employees, Affiliates, agents, representatives or

subcontractors have engaged in any activity or conduct that has resulted or will result in a violation of any Anti-Corruption Law.

- 8.3.2. That in connection with the terms of this Agreement, neither of the Party or any of its stockholders, employees or agents, representatives or subcontractors have offered, paid, promised to pay, or authorized the payment of any money or any other thing of value to (a) any Government Official or any one acting through a Government Official as that term is defined above, or (b) any other person while knowing that all or a portion of such money or anything else of value would be offered or given directly or indirectly to any official, political party, or to any candidate for political office for any of the prohibited purposes listed below.
- 8.3.3. For the purposes of **Clause 8.3.2** above, the prohibited purposes are:
 - a. to influence an act or decision of such official, political party, party official or candidate in his official capacity;
 - b. to induce such official, political party, party official or candidate to do or omit to do any act in violation of the lawful duty of such party, official or candidate; or
 - c. to induce such official, foreign political party, party official or candidate to use his or its influence with a Government Official.
- 8.3.4. Each Party hereby confirms that:
 - 8.4.1. It shall ensure that none of its agents (of KSWG) and directors and officers (of IHS) have been subject of an investigation, settlement, or conviction for violations of applicable bribery or corruption laws.
 - 8.4.2. It shall immediately upon discovery or reasonable suspicion send the other Party a written notification of an incident or suspicion of the involvement of the Party, its agents (of KSWG), or Affiliates, directors and officers (of IHS) or any third party representing it in a violation of applicable bribery or corruption laws.

9. LIMITATION OF LIABILITY AND INDEMNITY

- 9.1. Neither Party shall be liable for any loss, damage or injury whatsoever and howsoever arising, incurred or suffered by the other Party or any third party caused by or arising from the other Party's performance of its obligations in terms of this MOU, including without limitation, all consequential and special losses or damages, caused to that Party or any third party including that Party's directors, employees, agents, representatives, customers or to any other person whomsoever.
- 9.2. Each Party (the **"Indemnifying Party"**) hereby agrees to indemnify, defend, protect and hold harmless the other party, its employees, officers, shareholders, directors, agents, contractors and Affiliates (the **"Indemnified Party"**) from and against, and assumes liability for, any and all claims, demands, actions, losses, damages, assessments, charges, limitation, interests, penalties, and attorney's fees which may from time to time be suffered or incurred by, or asserted against the indemnified Party directly or indirectly, on account of or in connection with any injury, death, loss or damage to any person, tangible or intangible property or facilities of any person or entity (including reasonable attorneys' fees and costs at trial and appeal) to the extent arising out of or resulting from the negligence or willful misconduct of the Indemnifying Party, its officers, employees, servants, affiliates, agents or contractors or from any other person or entity for whom it is in law responsible.

Provided that nothing in **Clause 9.2** shall be construed as limiting the liability of any Party for personal injury or death resulting from the negligence of a Party or its employees.

10. ASSIGNMENT

- 10.1. This Agreement and the discussions between the Parties pursuant thereto are on an exclusive basis between the Parties.
- 10.2. No Party may assign the benefit under this Agreement or any rights or benefit thereof without the written consent of the other Party first having been obtained, such consent not to be unreasonably withheld.

11. FORCE MAJEURE

11.1. Notice of Force Majeure Event

As soon as practicable and in any case, within **twenty-four (24) hours** from the date of the occurrence of a Force Majeure event, or the date of knowledge thereof, the other Party shall notify the other Party of the same in writing, setting out *inter alia*, the following in reasonable detail:

- 11.1.1 the nature and extent of the Force Majeure Event;
- 11.1.2 an estimate of the anticipated Force Majeure period;
- 11.1.3 the nature of and the extent to which performance of any of its obligations under this Agreement are affected by the Force Majeure Events;
- 11.1.4 the measures which the Party has taken or proposes to take to alleviate / mitigate the impact of the Force Majeure Event and to resume the performance of its obligations thereby affected;
- 11.1.5 any other relevant information concerning the Force Majeure event, and / or the rights and obligations of the Parties under this Agreement.

11.2. Performance of Obligations

If a Party is rendered wholly or partially unable to perform any of its obligations under this Agreement due to a Force Majeure event, it shall be excused from the performance of such obligations to the extent that it is unable to perform same on account of such Force Majeure Event, provided that:

- 11.2.1 due notice of the Force Majeure Event has been given to the other Party as required under this Agreement;
- 11.2.2 the excuse from performance shall be of no greater scope and of no longer duration than is necessitated by the Force Majeure Event;
- 11.2.3 the Party has taken all reasonable efforts to mitigate or limit any damage that may be caused or is likely to be caused in relation to the performance of the Services as a result of the Force Majeure Event and to resume the performance of the Services in accordance with Good Industry Practice and its obligations under this Agreement;
- 11.2.4 when either Party is able to resume the performance of its obligations under this Agreement, it shall give the other Party written notice to that effect and shall promptly resume the performance of the Services; and
- 11.2.5 the Party shall continue to perform its obligations which are not affected by the Force Majeure Event and which are capable of being performed in accordance with the provisions of this Agreement.

- 11.3. The Parties hereby agree that where a Force Majeure Event persists for a period of **thirty (30) days or more**, either Party shall have the right to terminate the Agreement immediately, with or without notice.

12. GOVERNING LAW AND DISPUTE RESOLUTION

- 12.1. This Agreement (and any non-contractual obligations arising out of or in connection with it) shall be construed and governed in accordance with the laws of the Federal Republic of Nigeria.
- 12.2. In the event of any difference(s) or dispute(s) arising out of the interpretation or application of the provisions of this Agreement, the Parties shall immediately consult each other with the view to expeditiously resolve such differences or disputes in a spirit of mutual understanding and cooperation.
- 12.3. Where the dispute is unresolved by Parties within fifteen (15) days from the day the matter was referred, then either Party may refer such dispute to arbitration upon giving the other Party fifteen (15) days written notice.
- 12.4. The arbitration proceedings shall be conducted by a single arbitrator appointed in accordance with the provisions of the Arbitration and Mediation Act, 2023 or any amendments or re-enactments thereof utilising the rules contained in the said Arbitration and Mediation Act. The arbitration venue shall be Lagos, Nigeria.
- 12.5. Each Party shall bear its own costs and expenses of fees (including attorneys' and other related fees) incurred in connection with this Paragraph. The Arbitrator's fee shall be equally borne by both Parties.
- 12.6. Notwithstanding the foregoing, nothing shall prevent either Party from seeking injunctive relief from a court or bring an action in court to enforce any award or remedies based on a determination by any arbitration.

13. CONFIDENTIALITY

- 13.1. The Parties agree that any information exchanged between them, whether or not clearly marked as proprietary and/or confidential, shall be kept confidential and shall not be disclosed or given to any third party without the prior written permission of the Party that supplied the information. This understanding does not apply to information given to professional advisers (to whom the same confidentially obligations must be extended), information in the public domain, or to information required to be disclosed under any written law, an order of court, to a statutory regulator or as required as part of a communications plan of the Services.
- 13.2. The provisions of this clause shall survive this Agreement and the Parties shall remain bound by the provisions of this clause during the tenure of this Agreement and for a period not less than **three (3) years** following the expiry or termination of this Agreement, howsoever occurring.

14. UTMOST GOOD FAITH

Each Party understands that by virtue of this Agreement, the position of each Party to the other is that of trust and accordingly pledges to demonstrate utmost good faith throughout the duration of this Agreement.

15. TERMINATION

- 15.1. Either Party may terminate this Agreement if the other Party materially violates or breaches, or materially fails to fully and completely observe, keep, satisfy, perform and comply with, any agreement, term, covenant, condition, requirement, restriction or provision of this Agreement, and such Party does not cure such violation, breach or failure within thirty (30) days after the other Party gives such Party in default written notice of such violation, breach or failure, or, if such violation, breach or failure is incapable of being cured within thirty (30) days, if such defaulting party does not commence to cure such violation, breach or failure within such thirty (30) day period and continuously prosecute the performance of the same to completion with due diligence.
- 15.2. Notwithstanding the dispute resolution provisions of this Agreement or any other provisions of this Agreement, either Party shall be entitled to terminate this Agreement by giving the other part at least **six (6) months'** prior written notice. If notice is so given, this Agreement shall terminate upon the expiration of the specified period.

16. NOTICES

- 16.1. Any notice required under this Agreement must be made in writing (which may include email) and in English language, and delivered by hand, email, registered post, or courier using an internationally recognized courier company, to the addresses stated below. Each Party shall notify the other Party of any changes to its details as set out in this clause from time to time:

IHS:

CEO

Address: Plot 934, Idejo Street, Victoria-Island, Lagos State, Nigeria

Email: mdarwish@ihstowers.com

Kwara State Government

- 16.2. A notice shall be effective upon receipt and shall be deemed to have been received (i) at the time of delivery, if delivered by hand, registered post or courier or (ii) at the time of transmission, if delivered by email, to the extent no delivery failure notification is received by the sender within **twenty-four (24) hours** of such transmission.

17. ISO 26000 DECLARATION

IHS recognizes ISO 26000 Social Responsibility Guidance Standard as a reference document for the implementation of its obligations under this Agreement and further emphasizes that it is actively working to improve the environment and provide sustainable solutions to all relevant issues under this Agreement.

18. MISCELLANEOUS PROVISIONS

- 18.1. This Agreement supersedes all previous communications, transactions, and undertakings, whether oral or written, and constitutes the sole and entire agreement between the Parties concerning the Services and may not be amended except by a written document agreed and executed by both Parties hereto. Any amendment to this Agreement will not be binding on the Parties unless set out in writing, expressed to amend, or supplement this Agreement and signed by both Parties.

- 18.2. If, at any time, any provision of this Agreement is or becomes illegal, invalid or unenforceable in any respect under any jurisdiction, neither the legality, validity or enforceability of the remaining provisions nor the legality, validity or enforceability of such provision under any other jurisdiction will in any way be affected or impaired.
- 18.3. No failure to exercise, or any delay in exercising, on the part of any Party, any right or remedy under this Agreement will operate as a waiver, neither will any single or partial exercise of any right or remedy prevent any further or the exercise of any other right or remedy. The rights and remedies provided in this Agreement are not exclusive of any rights or remedies provided by law and same may only be waived in writing and specifically.
- 18.4. Each Party will be fully responsible for its actions or activities in relation to the Services; this includes being responsible for the actions or omissions of their respective staff, consultants, and other personnel and contractors. For the avoidance of doubt, in no event shall either Party be liable to the other Party for indirect or consequential losses or damages.
- 18.5. The costs incurred in the negotiation, preparation, and execution of this Agreement, including attorneys' fees, shall be borne solely by the Party incurring such costs.
- 18.6. Each Party confirms that (a) it has data protection policies in place that meets all data protection standards and legal requirements applicable to it, and (b) it will apply such policies in the performance of the activities contemplated under this Agreement. The Parties do not intend to share any personal data with each other; if the Parties decide to share any personal data with each other, they will agree on any additional data protection provisions necessary for such data sharing and set those out in an amendment to this Agreement.
- 18.7. Each Party will retain all ownership interest in its intellectual property that existed prior to this Agreement or was developed by such Party independently of the Agreement, including any updates, improvements or derivatives of such intellectual property that are developed during the course of the Services (collectively, **"Pre-Existing Intellectual Property"**), and the other Party will not claim any ownership interest in such Pre-Existing Intellectual Property. Except as otherwise expressly agreed in writing, IHS shall own all interest in any intellectual property (including, but not limited to, slogans, images, and designs) developed by it, on its own or jointly with the other Party, as part of the Services (collectively, **"IHS Intellectual Property"**), and the other Party will not claim any ownership interest in such IHS Intellectual Property.

19. COUNTERPARTS

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all such counterparts shall together constitute one and the same instrument.

(signature page follows)

IN WITNESS WHEREOF the Parties have caused this Agreement to be signed in the manner hereinafter appearing the day and year first above written.

The common seal
of the within-named **IHS (NIGERIA) LIMITED**
is hereunto affixed in the presence of:

Director

Secretary

SIGNED, SEALED AND DELIVERED
for and on behalf of
KWARA STATE GOVERNMENT by:

Name

Signature

Designation

Name

Signature

Designation

SCHEDULE 1